

24TRCV02553 24TRCV02553

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Case Number: 24TRCV02553 Hearing Date: September 17, 2026 Dept: P

Motion to Tax Costs

Moving Party: Defendant Ford Motor Company

Responding Party: None

RULING

The court considered the moving papers and reply. Ford's Motion to Tax Costs is GRANTED in part and DENIED in part. The court GRANTS Ford's Motion to Tax the memorandum of costs by \$1,562.85.

PROCEDURAL BACKGROUND

On August 1, 2024, Plaintiff Veronica Hernandez ("Plaintiff") filed a complaint against Defendants Ford Motor Company ("Ford"), South Bay Ford, Inc., and DOES 1 through 10, inclusive, alleging four causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On January 21, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

On May 13, 2026, Plaintiff filed a memorandum of costs.

On June 1, 2026, Ford filed the instant motion. On September 11, 2026, Ford filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on July 2, 2021, Plaintiff purchased a 2021 Ford Explorer (the "Subject Vehicle"). (Complaint, ¶ 9.) Plaintiff alleges that Ford issued a written warranty in connection with Plaintiff's purchase of the Subject Vehicle. (Complaint, ¶ 9.) Plaintiff alleges that the Subject Vehicle was delivered to her with serious defects and nonconformities to warranty and developed additional defects and nonconformities to warranty. (Complaint, ¶ 11.) Plaintiff alleges that she delivered the Subject Vehicle to an authorized Ford repair facility, but Ford was unable to conform Plaintiff's Subject Vehicle to the

applicable warranty after a reasonable number of repair attempts. (Complaint, ¶¶ 26-27.)

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 128-129 (citations and internal quotations omitted); see also Code of Civ. Proc. Section 1032(b).)

Allowable costs under Code of Civil Procedure Section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) Whereas, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Ibid.) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (Ibid.) However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (Ibid.)

DISCUSSION

Moving Party's Argument

Ford moves to strike Plaintiff's claimed \$645.35 for filing and motion fees, \$807.55 in deposition costs, \$430.00 for expert fees, and \$325.30 for "other" costs on the grounds that the costs are unsupported. Ford argues that Plaintiff's claimed filing and motion fees consist of internal processing fees charged by First Legal and are thus not recoverable. Next, Ford argues that Plaintiff's claimed deposition costs include costs pertaining to depositions which did not occur. Ford argues that Plaintiff's claimed expert fees are unreasonable because the expert charged for travel to and from a vehicle six times for one vehicle inspection and charged for excessive time spent inspecting the vehicle. Finally, Ford argues that Plaintiff improperly claims \$150.00 for Court Appearance Professionals charges which are not authorized by statute and \$175.30 for courtesy copies which were not required by the court and the associated delivery and photocopying charges are barred pursuant to Code of Civil Procedure Section 1033.5(b)(3).

Opposing Party's Argument

Plaintiff has not filed an opposition brief.

Reply Argument

Ford argues that Plaintiff has failed to demonstrate that the challenged costs were reasonably necessary and Ford has properly objected to Plaintiff's memorandum of costs. Ford argues that it seeks to strike Plaintiff's claimed filing and motion fees because they consist largely of vendor-imposed administrative fees. Next, Ford argues that the costs associated with Network Deposition Services are unnecessary and unreasonable. Ford reiterates its argument that Plaintiff's claimed travel-related expert fees are excessive. Next, Ford argues that Plaintiff has not shown that retaining an appearance attorney was necessary to the conduct of the litigation. Finally, Ford argues that Plaintiff's claimed costs pertaining to courtesy copies should be stricken because the court does not require courtesy copies and the associated delivery and photocopying charges are expressly barred by CCP Section 1033.5(b)(3).

Merits of the Motion

A. Filing and Motion Fees

Ford seeks to tax Plaintiff's memorandum of costs by \$645.35 in filing and motion fees because Plaintiff's supporting invoices show that the charges do not constitute court-imposed filing fees but rather consist of internal processing fees charged by First Legal.

Code of Civil Procedure Section 1033.5(a)(1) provides that filing fees are allowable as costs under Section 1032. (Code Civ. Proc. Section 1033.5(a)(1).)

The court has reviewed Plaintiff's memorandum of costs and finds that Plaintiff has provided itemized fees for each filing. The court notes that filing fees are expressly recoverable under Code of Civil Procedure Section 1033.5 and finds that each item appears proper on its face. Further, a verified memorandum of costs is prima facie evidence that the costs were necessarily incurred. ((Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.)

The court declines to strike Plaintiff's claimed \$645.35 in filing and motion fees.

B. Deposition Costs

Next, Ford requests that the court strike \$807.55 from Plaintiff's memorandum of costs on the grounds that Plaintiff seeks \$482.55 for Network Deposition Services on December 12, 2025 and \$325.00 for Network Deposition Services on January 8, 2025, yet "Plaintiff unilaterally noticed a PMK deposition for December 12, 2025 and [Ford] timely served objections on December 8, 2025." (Cabibi Decl., ¶ 3.) Ford's counsel declares that Plaintiff seeks deposition costs for a Notice of Non Appearance on December 12, 2025 for "a PMK deposition that was never agreed upon." (Cabibi Decl., ¶ 3.) Ford states in its moving papers that Ford "has no knowledge as to why a notice of non-appearance was taken on December 12, 2025 nor was [Ford] served with the transcripts for this non-appearance." (Mot. 6:7-8.) Ford additionally challenges Plaintiff's claimed costs for a cancelled deposition on January 8, 2025, which occurred after Plaintiff's counsel canceled the deposition that morning.

Code of Civil Procedure Section 1033.5(a)(3)(A) provides that allowable costs under Section 1032 include "[t]aking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed."

The court finds that Ford has met its burden of challenging Plaintiff's claimed \$807.55 for Network Deposition Services on December 12, 2025 and January 8, 2025 by providing evidence showing that Ford did not agree to the deposition and the deposition did not occur, such that these costs are not recoverable pursuant to Code of Civil Procedure Section 1033.5(a)(3)(A). The court notes Plaintiff has not submitted an opposition.

Accordingly, the court reduces Plaintiff's memorandum of costs by \$807.55.

C. Expert Fees

Next, Ford requests that the court strike \$430.00 from Plaintiff's memorandum of costs pertaining to expert fees. Ford argues that Plaintiff seeks a total of \$1,727.50 in expert fees for the December 18, 2025 vehicle inspection, yet Plaintiff's expert charged a total of \$540.00 for "travel to/from vehicle" six times, which is excessive and unreasonable. Ford also argues that Plaintiff's expert charged \$1,187.50 for 4.75 hours of work incurred inspecting the vehicle, but "the vehicle inspection only lasted 3.75 hours." (Cabibi Decl., ¶ 4.)

General arguments that an expert's fees are exorbitant or excessive are not sufficient to contest a memorandum of costs which appears to be proper on its face. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1487.) However, the court finds that Ford has pointed to a specific item within Plaintiff's expert's invoice and has provided evidence in the form of Ford's counsel's declaration to support Ford's argument that Plaintiff's claimed expert fees are excessive as the vehicle inspection lasted an hour less than is reflected in Plaintiff's expert's invoice. Further, Plaintiff has not submitted an opposition and thus has not demonstrated that the challenged expert fees were reasonable and necessary.

Therefore, the court reduces Plaintiff's memorandum of costs by \$430.00.

D. "Other" Costs

Finally, Ford objects to Plaintiff's claimed \$150.00 for Court Appearance Professionals ("CAP") fees and \$175.30 for courtesy copies.

The court has reviewed Plaintiff's memorandum of costs and notes that Plaintiff claims a total of \$150.00 for CAP fees pertaining to the Case Management Conference Appearance and the Final Status Conference Appearance.

Code of Civil Procedure Section 1033.5(c)(4) provides that "[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion." Section 1033.5(c)(2) states that "[a]llowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial."

Plaintiff has not submitted an opposition, and thus the court concludes that Plaintiff has not established that her claimed \$150.00 in CAP fees were reasonably necessary to the litigation rather than merely convenient or beneficial. Therefore, the court exercises its discretion to reduce Plaintiff's memorandum of costs by \$150.00.

Similarly, Plaintiff has not established that her claimed \$175.30 for courtesy copies was reasonably necessary to the litigation rather than merely convenient or beneficial. Further, Code of Civil Procedure Section 1033.5(b)(3) expressly provides that with the exception of charges for exhibits, photocopying charges are generally not allowable as costs. (Code Civ. Proc. Section 1033.5(b)(3).)

Therefore, the court exercises its discretion to reduce Plaintiff's memorandum of costs by an additional \$175.30.

Accordingly, Ford's Motion to Tax Costs is GRANTED in part and DENIED in part. The court GRANTS Ford's Motion to Tax the memorandum of costs by \$1,562.85.

CONCLUSION

Based on the foregoing, Ford's Motion to Tax Costs is GRANTED in part and DENIED in part. The court GRANTS Ford's Motion to Tax the memorandum of costs by \$1,562.85.

Moving party is ordered to give notice of ruling.